# IN THE HIGH COURT OF DELHI AT NEW DELHI

CRIMINAL APPELLATE JURISDICTION

Neutral Citation No. 2024:DHC:4512-DB

**CRL.A. No. 567 of 2023**

CNR No.: DLHC010045672023

SUNIL KUMAR BANSAL ... Appellant

Through: Mr. A. K. Sharma, Senior Advocate with

Mr. Pranav Mehta, Advocate, Enrolment No. D/1234/2015

**Versus**

STATE (NCT OF DELHI) ... Respondent

Through: Ms. Ritu Bansal, Additional Public Prosecutor

CORAM: HON'BLE MR. JUSTICE R. K. GAUBA

HON'BLE MS. JUSTICE ANITA NARAYAN

Reserved on: 12th July, 2024

Pronounced on: 26th August, 2024

**JUDGMENT**

**R. K. GAUBA, J.**

1. This appeal under Section 374(2) Cr.P.C. is directed against the judgment dated 15/09/2023 passed by the learned Additional Sessions Judge, Patiala House Courts, New Delhi in S.C. No. 112/2021 arising out of FIR No. 0123/2024, P.S. Connaught Place, convicting the appellant u/s 420 and 468 IPC and sentencing him to rigorous imprisonment for five years with a fine of Rs. 2,00,000/-.

2. Learned counsel for the appellant relied upon (2019) 4 SCC 512 and AIR 2015 SC 2214 to contend that the requirement of Section 468 IPC was not satisfied. Reliance was also placed on 2021 Cri LJ 998.

3. The prosecution examined PW-1 Anil Sharma and PW-3 Vikram Singh. The document at Ex. P-4 was proved through the certificate under Section 65B of the Indian Evidence Act.

4. Having considered the material on record, we are of the view that the finding of guilt under Section 420 IPC is unassailable. However, the conviction under Section 468 IPC cannot be sustained for want of proof of the making of a false document.

5. Accordingly, the appeal is partly allowed. The conviction under Section 468 IPC is set aside. The conviction under Section 420 IPC is

maintained but the sentence is reduced to three years rigorous imprisonment. The fine of Rs. 2,00,000/- is maintained and shall be paid within 60 days. The appellant shall surrender within 30 days.

6. A copy of this judgment be sent to the trial court and to the Superintendent, Central Jail Tihar, for compliance.

R. K. GAUBA, J.
ANITA NARAYAN, J.

AUGUST 26, 2024